

23STCV30345 23STCV30345

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Case Number: 23STCV30345 Hearing Date: July 31, 2026 Dept: 510

No.

13 - Jane Doe D.R. v. Paramount Plaza, LLC, et al.

Plaintiff

Jane Doe D.R.'s Motion to Compel Site Inspection of Paramount Plaza

Plaintiff

Jane Doe D.R. moves to compel Defendants Paramount Plaza LLC, Jamison Services, Inc., and Jamison Properties (collectively "Defendants") to allow Plaintiff to inspect Paramount Plaza.

"A

party may demand that any other party allow the party making the demand, or someone acting on the demanding party's behalf, to enter on any land or other property that is in the possession, custody, or control of the party on whom the demand is made, and to inspect and to measure, survey, photograph, test, or sample the land or other property, or any designated object or operation on it." (Code Civ. Proc., § 2031.310(d).) A party demanding inspection may move to compel further responses if "[a] statement of compliance with the demand is incomplete," "[a] representation of inability to comply is inadequate, incomplete, or evasive," or "[a]n objection in the response is without merit or too general." (Code Civ. Proc., § 2031.310(a).)

As an initial matter, the Court notes

that the parties have since met and conferred and narrowed the issues in dispute. Plaintiff represents in reply that Defendants agreed to allow the inspection of areas not under construction: "lobbies; plazas; elevators; hallways; the area between the two Paramount Plaza buildings; exterior entry

points; and the parking garage.” (Reply, at p. 2.) However, the parties did not reach a consensus regarding whether Defendants would allow Plaintiff to inspect the security guard stations on the property. Therefore, Plaintiff asks the Court to compel Defendants to allow inspection of this area.

The

Court cannot grant the relief that Plaintiff seeks. Plaintiff makes this motion under CCP § 2031.310(a), which only allows the Court to compel a further response to a demand for inspection. While CCP § 2031.320(a) allows the Court to compel compliance with a demand for inspection, it can only do so once Defendant has provided a statement of compliance. (See CCP § 2031.320(a) [“If a party filing a response to a demand for inspection . . . thereafter fails to permit the inspection . . . in accordance with that party’s statement of compliance, the demanding party may move for an order compelling compliance.”].) Defendant has not provided a statement of compliance.

But for this procedural issue, the

Court would have granted the request to allow inspection of the security guard station, which appears to be narrowly tailored and of limited duration. The Court encourages the parties to meet and confer further to resolve this narrow discovery issue.

Disposition

Plaintiff

Jane Doe D.R.’s motion to compel site inspection of Paramount Plaza is denied.